

are only to make an account to God and the King, and not to answer to any suggestion in the Star-Chamber." *Id.*, at 25, 77 Eng. Rep., at 1307.

As this quoted language illustrates, Coke's principle of immunity extended only to the higher judges of the King's courts. See 5 Holdsworth, at 159-160. In time, Coke's theory was expanded beyond his narrow concern of protecting the common-law judges from their rival courts, so that judges of all courts were accorded immunity, at least for actions within their jurisdiction.⁸ See *Scott v. Stansfield*, 3 L. R. Ex. 220 (1868) (immunity extended to a county court, an inferior court of record; reliance placed on precedent extending immunity to the court of a coroner and to a court-martial, an inferior court and a court not of record); *Haggard v. Pelicier Frères* [1892] A. C. 61 (1891) (judge of Consular Court of Madagascar given same immunity as judge of a court of record). In addition, the theory itself was refined, its focus shifting from the need to preserve the King's authority to the public interest in independent judicial decisionmaking. See *Taaffe v. Downes*, reprinted in footnote in *Calder v. Halket*, 13 Eng. Rep. 12, 18, n. (a) (P. C. 1840) ("An action before one Judge for what is done by another, is in the nature of an Appeal; and is the Appeal from an equal to an equal. It is a solecism in the law . . . that the Plaintiff's case is against the independence of the Judges").

⁸ See Feinman & Cohen, *Suing Judges: History and Theory*, 31 S. C. L. Rev. 201, 211 (1980). As will be demonstrated, it was not always easy to determine what actions were within a court's jurisdiction. A similar limitation was imposed on the King's authority to control the judge by use of the prerogative writs. It appears, however, that the jurisdictional limit was taken more seriously—offering the judge more protection—when the issue was personal liability for an erroneous judicial action than when the question involved the reach of the prerogative writs. Compare *Gwinne v. Poole*, 2 Lut. 935, 125 Eng. Rep. 522 (C. P. 1692), with *Gould v. Gapper*, 5 East. 345, 102 Eng. Rep. 1102 (K. B. 1804).